IN THE DISTRICT COURT HELD AT OSINOON THURSDAY, THE 29TH DAY OF MAY, 2025, BEFORE HIS WORSHIP AYAGIBA SALIFU BUGRI

DISTRICT MAGISTRATE

CASE NO. A2/25/25

1. **PRINCE ACHEAMPONG**
2. **JULIUS KAGYA** …… **PLAINTIFFS**

   ALL OF OSINO

   VRS

1. **NANA OKYEAME OFOSU** ……. **DEFENDANTS**
2. **EFO (MINER)**

   ALL OF OSINO

JUDGEMENT

Reliefs sought:

a. Recovery of cash the sum of GHC13,000 being the payment for land acquired from defendants.
b. Interest on the said amount since May 2023 to the date of final payment.
c. Costs

Brief Facts

Plaintiffs are business men residing in Osino. D1is the chief linguist of Osino and D2 is a miner. Somewhere in 2023 the plaintiffs engaged D1 to buy a plot of land to engage in community in Osino. Plaintiffs faced a number of challenges at the initial stages of their mining activity and decided to halt the activity until a later date. However, plaintiffs saw D2 mining on the same parcel of land when they returned to undertake the mining activity. Upon enquiry, it was revealed that D1 sold the said land to D2 to mine on. Plaintiffs say they have made attempts to resolve the matter amicably to avail.

On the other hand, D1's defense is that he has not sold the land under litigation to D2, but instead contracted him to reclaim/refill the land for other use and D2 corroborated same in his evidence in chief.

ISSUES FOR DETERMINATION

Whether or not there was an agreement between the parties to lease D1's land

Whether or not the plaintiffs have discharged the burden of proof

It is trite that a lease is an implied or written agreement specifying the conditions under which a lessor accepts to let out a property to be used by the lessee over an agreed period of time. The parties also agree on the mode of payments over the period that the lease shall subsist. The parties are bound by the terms of their own agreement or contract. Just like any contract, the terms of the contract shall specify the consequence should there be a breach of any of the terms that they have agreed.

On the other hand, a contract is a legally binding agreement between two parties which a court will enforce, except illegal contracts and ones tainted with fraud. A contract must satisfy the requisite legal requirement before it can be enforced. There must first be an offer, acceptance and consideration for a contract to be valid and also meet any legal requirement to bind the parties in the absence of fraud.

The terms of a contract refer to the exact undertakings that the parties have agreed to carry out under the agreement, in other words they refer to the conditions stipulations and covenants that the parties have each agreed to be bound by. It is difficult and almost impossible for a court to enforce a contract whose terms are not clear as to what each party is required to do under the contract. The terms of a contract are an essential part such that a party cannot be bound by any terms if there is no contract.

Where there are no terms in a contract, the parties are regarded as still negotiating. It is trite law that an agreement to agree in the future is not a contract.

The only remedy is by a court implying the terms by trade usage, from the course of dealing with the parties in the past and by importing into the contract, certain implied terms that may be provided by statutes to regulate certain subject matters.

Section 11 of ACT 25—Contracts Need not be in Writing Except in Certain Cases.

Subject to the provisions of any enactment, and to the provisions of this Act, no contract whether made before or after the commencement of this Act, shall be void or unenforceable by reason only that it is not in writing or that there is no memorandum or note thereof in writing.

According to the plaintiffs they entered into an agreement with D1 to lease his land and mine on it for a period after which the land will revert to D1. The plaintiffs did not tender any form of a written agreement to buttress or prove the claim, except that the D1 admitted that claim.

During cross examination it revealed that upon paying GHC13000 to D1 they went unto the land and started mining to the extent that their mining equipment were seized by a mining company in one instance and Police arrest for encroachment of an adjoining farmland in another instance. Thus, it is established at the juncture that the plaintiffs undertook mining on the land following the lease even though the period is not specified.

P1 admitted that they agreed to reclaim the land after mining on it but failed to do so because they had not finished. In the opinion of the court whether or not the land was a concession of KOLAK mining is not an issue because that did not prevent the plaintiffs

from mining on it. P1 further admits during cross examination that they did not inform D1 when they left the land due to reasons that are not specifically stated or due to any difficulties that they encountered and that they will return to continue with the mining activity that they had started.

The court can infer from D1's testimony that as far as he is concerned, he entered into a customary tenancy with the plaintiffs. It is trite that under customary law land tenancy, the parties enter into an agreement to lease and not sell part of a farmland to a third party for a period which is specified under the agreement. Because there is mostly no form of writing under customary law the agreement is mostly in kind. The lessee only provides customary requirements mostly a bottle(s) of schnapps etc. depending on the geographical jurisdiction to signify acceptance in the presence of witnesses.

Customary tenancy involves the creation of a limited interest in land for a consideration. The consideration is mostly in kind but recently they are created for a monetary consideration. It confers on the tenant a right to occupy and use the land for a specified purpose for an indefinite period or fixed period so long as the tenant continues to observe and perform the terms and conditions upon which he was let into possession.

In the instant case it is notorious within the jurisdiction that because the land is leased for mining purposes, which affects the form and substance of the land, and the lessee is likely to derive a a more valuable profit or proceeds which is Gold, a precious mineral, the lessors do not lease the lands in kind but for a monetary consideration. Under such agreements, the lessor is obliged to refill the land after his mining activity, but has mostly ended up in litigation by the non-performance of that part by the lessee once the mining is over.

I have no doubt in my mind that the parties in the instant case are ad idem on the object for going into the contract that they entered into. However, after evaluating the evidences adduced it is clear that what falls short of enforcing the contract is the absence of explicit terms as to the tenure of the tenancy or contract. There is no evidence that specifies when the contract begins and terminates. Thus, when the plaintiffs took a break as they have indicated, D1 presumed that they had finished mining and thereby contracted D2 to refill the land in order to reclaim it for other purpose. Even though the plaintiffs have alleged that D1 has resold the land to D2, there is no evidence to that. Moreover, P1 admitted that he failed to inform D1 that they had only taken a break and had not finished mining and had the intention to return unto the land to continue with their mining activity.

Per the Evidence Act:

Section 11—Burden of Producing Evidence Defined.

(1) For the purposes of this Decree, the burden of producing evidence means the obligation of a party to introduce sufficient evidence to avoid a ruling against him on the issue.

Section 12—Proof by a Preponderance of the Probabilities.

(1) (1) Except as otherwise provided by law, the burden of persuasion requires proof by a preponderance of the probabilities.

(2) "Preponderance of the probabilities" means that degree of certainty of belief in the mind of the tribunal of fact or the court by which it is convinced that the existence of a fact is more probable than its non-existence.

In the instant case to the extent that the plaintiffs entered into a contract whether a verbal or written agreement, the terms should have been explicitly stated regarding when it begins and terminates. When the plaintiffs decided to break the activity due to reasons known to them, this fact should have been communicated to D1 in order to prevent a resale or discard any erroneous impression that the plaintiffs had finished mining and abandoned the pit or seeming creator created.

Even under any customary law disposition, there are witnesses and publicity of the grant and if there are terms they are made in the presence of those witnesses. Thus, to the extent that plaintiffs are teachers they ought to have known better than to enter into an agreement or contract that the terms are not explicit or backed by any documentation in the absence of witnesses, especially when they intend to rely on it.

In that case it is the oath of the plaintiffs against the oath of the defendants. Until the burden is shifted the onus is on the plaintiff to prove his case and not rely on the weakness of the defendant's defense. Notwithstanding the inconsistencies is some of the defendant's responses during cross examination, it is not enough to shift the burden of proof.

On the credibility of a witness, a court is duty bound to determine the credibility of a witness especially where there are conflicting accounts in the evidence on the records. Thus, on the balance of probabilities, which party is truthful and reliable.

In Barimah Gyamfi v Ama Badu [1963] vol2 GLR 596

Where the plaintiff's case is as doubtful as the defendants' case, the position of the law is that "he who asserts must lose".

The case of the plaintiffs would have been different had evidence adduced suggest that after the payment of GHC12000, they did not commence mining on the said land before it was resold or D2 contracted to refill the land. To the extent that after the payment was made the plaintiffs mined the land and left without notice to D1, D1 was right to assume that the plaintiffs had finished mining and abandoned the land and thus takeover his land and do with it what he pleased. After all it is established that the land was not sold to the plaintiffs and the payment made was a consideration for the use of the land.

Under the circumstances, the reliefs sought by the plaintiffs are dismissed.

HIS WORSHIP

AYAGIBA SALIFU BUGRI,

MAGISTRATE